

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SYMANTHA RHODES

X

INDEX#:
SUMMONS

Plaintiff,

VS.

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SKOMINA
SHIELD #: 19562, 62 COMMAND,
AND POLICE OFFICER JOHN AND/OR
JANE DOE POLICE OFFICERS NUMBERS 1-10;**

Defendants.

X

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve the plaintiff a copy of your answer, or, if the complaint is served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York); and in case of your failure to appear or answer the Plaintiff's complaint, judgment will be taken against you by default for the relief demanded therein.

Plaintiff designates Kings County as the place of venue based on where the incident occurred.

Dated: New York, NY 10007
May 7, 2018



Ronald P. Hart, Esq.
Attorney for the Plaintiff
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

SYMANTHA RHODES
Plaintiff,

X
INDEX #:
COMPLAINT:

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SKOMINA
SHIELD #: 19562, 62 COMMAND,
AND POLICE OFFICER JOHN AND/OR
JANE DOE NUMBERS 1-10**
Defendants.

X

NOW COMES the Plaintiff, **SYMANTHA RHODES**, by and through his attorney,
RONALD P. HART, ESQ. as and for his complaint against the Defendants, and respectfully
shows to this Court and allege as follows:

PARTIES:

- 1) That the Plaintiff, **SYMANTHA RHODES** (Hereinafter "Plaintiff") is presently a resident of Kings County, City and State of New York.
- 2) At the time of the incident, the Defendants Police Officer Skomina was and is a resident and/or employee of Kings County, City and State of New York.
- 3) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
- 4) Upon information and belief, that at all times, hereinafter mentioned, the Defendant, **THE CITY OF NEW YORK**, its agents, servants and employees operated, maintained and controlled the Police Department of The City of New York, and all the police officers thereof, including defendant Police Officers **JOHN/JANE DOES 1-10**.

5) Upon information and belief, at all times hereinafter mentioned, and on or prior to August 14, 2017, Defendants, Police Officer Nicholas Skomina and Police Officers **JOHN/JANE DOES 1-10**, were employed by Defendant, **THE CITY OF NEW YORK**, as police officers.

6) This action arises both under the New York and United States Constitution, particularly under provisions of the Fourth and Fourteenth Amendments to the Constitution of the united states, and under federal law, particularly the Civil Rights Acts, Title 42 of the United Code, Section 1983, 1981, 1988, 1985(3) et seq. and state law for malicious prosecution, abuse of process, negligent hiring, training, and supervision of police officers, permitting unlawful police practices, and racial discrimination, to name a few of the causes of action.

7) This action also arises under and the rights under the Constitution and laws of the State of New York.

8) Each and all of the acts of the Defendants alleged herein were done by the defendants, their agents, servants and employees, and each of them, as individuals and in their official capacities as police officers under the color and pretense State law, the statutes, ordinances, regulations, customs and usages of the State of New York, the **CITY OF NEW YORK** and the County of new York, and under the authority of their office as police officers of said state, City and County of Kings.

9) The amount in controversy is \$75,000 exclusive interest.

PENDANT STATE CLAIMS:

10) That Notice of Plaintiff's Claim for Damages for Malicious Prosecution, False arrest/False imprisonment, Civil rights' violations, negligence in hiring and retaining, negligence in performance and negligence in training and supervising, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose was duly served upon the Comptroller Defendant **THE CITY OF NEW YORK** on the November 13, 2017.

11) That more than 30 days have elapsed since the Notice of Claim was served upon Defendants **CITY OF NEW YORK** and the other defendants.

12) Said Defendants have neglected to or refused to make any adjustments or payment thereof; hence, this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SYMANTHA RHODES
FALSE ARREST AND FALSE IMPRISONMENT:

13) The Plaintiff, **SYMANTHA RHODES**, hereby incorporates by reference each and every preceding paragraph 1-12 of this Complaint as if fully pled and re-alleged herein.

14) That on or about August 14, 2017, around 11:00am Plaintiff, **SYMANTHA RHODES** (Hereinafter "Plaintiff"), was at her place of residence located at 9010 Kings Highway, Brooklyn, NY 11212.

15) Plaintiff was babysitting her niece Fayth Rhodes.

16) Plaintiff's niece did not follow her commands but called her dad to complain about Plaintiff telling her what to do.

17) Her dad, Fernando Rhodes, who has a long history of harassing Plaintiff.

18) Plaintiff called the police after being shoved and Fernando Rhodes broke her I-phone.

19) When the police arrived, Fernando Rhodes concocted a false story that Plaintiff assaulted his daughter.

20) He coached his daughter to say the same.

21) Plaintiff was then wrongfully detained and falsely imprisoned for approximately 24 hours.

22) Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of the courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SYMANTHA RHODES
FOR MALICIOUS PROSECUTION:

23) The Plaintiff, **SYMANTHA RHODES**, hereby incorporates by reference each and every preceding paragraph 1-22 of this complaint as though fully plead and re-alleged in their entirety below.

24) That on or about August 14, 2017, around 11:00am Plaintiff, **SYMANTHA RHODES** (Hereinafter "Plaintiff"), was at her place of residence located at 9010 Kings Highway, Brooklyn, NY 11212.

25) Plaintiff was babysitting her niece Fayth Rhodes.

26) Plaintiff's niece did not follow her commands but called her dad to complain about Plaintiff telling her what to do.

27) Fernando Rhodes has a long history of harassing Plaintiff.

28) Her dad, Fernando Rhodes, has a long history of harassing Plaintiff.

29) Plaintiff called the police after being shoved and Fernando Rhodes broke her I-phone.

30) When the police arrived, Fernando Rhodes concocted a false story that Plaintiff assaulted his daughter.

31) He coached his daughter to say the same, causing Plaintiff's arrest.

32) Plaintiff was then wrongfully detained and falsely imprisoned for approximately 24 hours.

33) Plaintiff was forced to attend multiple court appearances even though there was no legal basis for these false charges.

34) All of Plaintiff's criminal charges were dismissed in her favor on December 15, 2017.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF SYMANTHA RHODES
FOR CIVIL RIGHT ACTION 42 USC §1983:

35) The Plaintiff, SYMANTHA RHODES, hereby incorporates by reference each and every preceding paragraph 1 through 32 of this Complaint as though fully plead and re-alleged in their entirety below.

Venue and Jurisdiction

36) The jurisdiction is founded upon the existence of a Federal Question.

37) That this is an action to redress the deprivation under color of state and/or federal statute, ordinance, regulation, custom or usage of right, privilege, and immunity secured to Plaintiff by the First, Fourth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. § 1983, 1981, 1985 (3) and arising under the Federal Constitution, statutes and laws as well as the laws and statutes of the State and Constitution of New York.

38) That Jurisdiction is founded upon U.S.C § 1331 and § 1343 (3) and (4), this being an action authorized by law to redress the deprivation under the color of statute, ordinance, regulation, custom or usage of a right, privilege, and immunity secured to the Plaintiff by the First, Fourth, and Fourteenth amendments to the Constitution of the United States (42 USC §

1983, 1981, 1985 (3), 1988) and arising under the federal constitutional laws and statues as well as the laws, statues, and constitution of the State of New York.

39) The amount in controversy exceeds, exclusive of interest and costs are \$75,000, the jurisdictional limits of this and any other court having jurisdiction.

40) The Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned and deprived of her Constitutional rights as set forth in the Constitution of the United States, particularly 42 USC § §1981, 1983, 1985(3), & 1988 and the Constitution of the State of New York.

41) That on or about August 14, 2017, around 11:00am Plaintiff, **SYMANTHA RHODES** (Hereinafter "Plaintiff"), was at her place of residence located at 9010 Kings Highway, Brooklyn, NY 11212.

42) Plaintiff was babysitting her niece Fayth Rhodes.

43) Plaintiff's niece did not follow her commands but called her dad to complain about Plaintiff telling her what to do.

44) Her dad, Fernando Rhodes, has a long history of harassing Plaintiff.

45) Plaintiff called the police after being shoved and Fernando Rhodes broke her I-phone.

46) When the police arrived, Fernando Rhodes concocted a false story that Plaintiff assaulted his daughter.

47) He coached his daughter to say the same, causing Plaintiff's arrest.

48) Plaintiff was then wrongfully detained and falsely imprisoned for approximately 24 hours.

49) Plaintiff was forced to attend multiple court appearances even though there was no legal basis for these false charges.

50) All of Plaintiff's criminal charges were dismissed in her favor on December 15, 2017.

51) Defendants by engaging in the conduct described above, falsely arresting and imprisoning Plaintiff, Defendant, Police Officers Nicholas Skomina, and Defendant Police Officers **JOHN/JANE DOES 1-10** deprived Plaintiff of her civil rights pursuant to 42 U.S.C.A. §1983.

52) Furthermore, as police officers employed by Defendant **CITY OF NEW YORK**, said Defendant Police Officers were acting under the color of State law.

53) That the aforementioned misuse of authority and power by Defendants Police Officers **JOHN/JANE DOES 1-10** were egregious and shocking to the conscience.

54) As a direct result, Plaintiff was caused to undergo the humiliation and indignities resulting from his unlawful confinement against will; and was caused and will continue to undergo and endure severe mental anguish, humiliation and economic hardship as a consequence thereof.

55) Such deprivation were in violation of the rights secured to Plaintiff by the First, Fourth, Fourteenth Amendments of the United States constitution and by Title 42 U.S.C.A. § 1983 and the laws, ordinances and statutes of the State of New York to wit:

- a. The Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- b. Defendant acted pursuant to an official policy even though unwritten which authorized police officers to arrest minority citizens even though they committed no offense and no physical injuries were manifested.

- c. The arrest and imprisonment was not justified by probable cause or other legal privilege; Defendants, their agents, servants and employees, acting under the color of law and under authority of their Office as Police Officers for the City falsely arrested the Plaintiff knowing that the Plaintiff had not violated any part of the New York State Penal Law.
- d. That the Defendant, their agents, servants and employees failed to adequately and properly hire, retain, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees
- e. That Defendants, their agents, servants and employees is in their failure to enforce the laws of the state of New York did act with reckless disregard to Plaintiff's rights in that they did not exercise that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants.
- f. That Defendant, their agents, servants and employees in their failure to hire, train, supervise and discipline or in any other way control the Defendants in the exercise of their functions to enforce the law of the state and **CITY OF NEW YORK**, did act willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the state of New York including Plaintiff.
- g. That the acts of the Defendants, their agents, servants and employees relative in failing to properly discipline, hire and train their employees, agents and servants is a presents a clear and present danger to the citizens of the City and State of New York.

- h. That prior to the Defendant Police Officers arrival at Plaintiff's home on August 14, 2017, around 11:00 AM, the City of New York condoned New York City Police Department's practice of violating the constitutional rights of minority citizens by turning a blind eye to such practices whereby the police forcibly enter the homes of minority citizens without a warrant, probable cause, lack of exigent circumstances in violation of the Fourteenth Amendment and equal protection of the laws when responding to 911 calls or other complaints.
- 56) That, upon information and belief, before Plaintiff's arrests by these Defendant police officers and all of them, the NYC Police Commissioner, approved, authorized, established, and ratified policies, procedures, and protocols for NYPD's supervisory staff City-Wide to arrest minority citizens without warrant, probable cause for charges they knew or had to reason to know were false.
- 57) For the above reasons, and due to the constant violation of the Fourteenth Amendment and equal protection of the law racial minorities and blacks in particular have now been severely curtailed resulting in the NYC Police Department being placed under City Monitor Peter Zimroth, Esq.
- 58) As a result of the aforesaid Defendants' deprivation of Plaintiff's civil rights.
- 59) Plaintiff has been damaged in a sum that exceeds the Jurisdictional limits of all lower courts. Defendants, their agents, servants and employees, wrongfully and falsely arrested, imprisoned and detained the Plaintiff without any right, privilege or grounds.
- 60) The arrest and imprisonment was not justified by probable cause or other legal

privilege or grounds. Defendants their agents, servants and employees, acting under the color of law falsely arrested Plaintiff knowing that she did not violated New York State Law.

61) That by their wanton conduct, Defendants showed a blatant disregard for Plaintiff's Constitutional rights.

62) That the Plaintiff demands attorney fees should he prevail in his 42 USC Section 1983 claims against the individually named police officers and **CITY OF NEW YORK**.

AS AND FOR THE FOURTH CAUSE OF ACTION
ON BEHALF OF SYMANTHA RHODES
FOR ATTORNEY FEES PURUSANT TO 42 USC SECTION 1988:

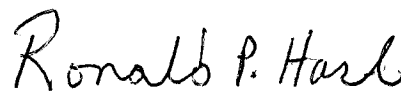
63) Plaintiff, **SYMANTHA RHODES**, hereby incorporates by reference each and every preceding paragraph 63 of this Complaint as though fully plead and re-alleged in their entirety below.

64) That should Plaintiff be successful on his 1983 and other federal claims, She will seek attorney fees against these Defendants and the City of New York.

65) That by reason of the aforesaid violations, the Plaintiff requests the following relief:

- a. Compensatory damages on all causes of action in a sum which exceeds the jurisdictional limits of all lower courts.
- b. Punitive damages against individually named defendants and police officers in the sum which exceeds the jurisdictional limits of all lower courts.
- c. An award of reasonable attorney's feed, costs and disbursements;
- d. Plaintiff requests a trial by jury of all issues involved in this complaint;
- e. Such other and further relief as this Court may deem just, meet and proper under the circumstances.

Dated: New York, NY 10007
May 7, 2018

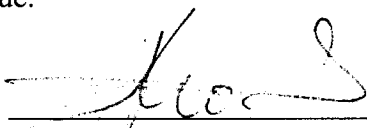
A handwritten signature in black ink, reading "Ronald P. Hart", is written over a horizontal line.

Ronald Paul Hart, Esq.
225 Broadway, Suite 2815
New York, NY 10007
Tel: (212) 766-1443
Fax: (212) 766-0943
Email: ronaldphartesq@gmail.com

VERIFICATION

State of New York }
 SS.:
County of New York }

Symantha Rhodes, being duly sworn, deposes and says that I am the Plaintiff in this action. I Have read the foregoing Verified Complaint know the contents thereof; that the same is true to my own knowledge, except as to the matters stated to be alleged upon information and belief, and as to those matters I believe them to be true.



SYMANTHA RHODES

Sworn to before me this
7th day of May 2018



Notary Public

RONALD PAUL HART
Notary Public, State of New York
No. 021044089768
Qualified in New York County
Commission Expires July 27, 2018 *18 R.H*

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SYMANTHA RHODES

Plaintiff,

-against-

**Index No:
Summons and Complaint**

**THE CITY OF NEW YORK,
POLICE OFFICER NICHOLAS SKOMINA
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JANE DOE POLICE OFFICERS NUMBERS 1-10;**

Defendants.

RONALD PAUL HART, ESQ.

Attorney(s) for the PLAINTIFF

225 Broadway Suite 2815

New York, New York 10007

Tel. (212)766-1443

**To: ALL COUNSEL
Attorney(s) for
THE DEFENDANTS:**

Service of a copy of the within SUMMONS AND COMPLAINT

Attorney(s) for THE PLAINTIFFS

Counselor(s): Please Take notice

NOTICE OF ENTRY

**that the within is a (certified) true copy of a
duly entered order in the office of the clerk of the within named court on**

NOTICE OF SETTLEMENT

**that an order for of which the within is a true copy will be presented for settlement to the
HON. one of the justices of the within named Court at the within is a (certified) true copy of
a duly entered**